supervisor, and upon allowance of such roads the boundary of the wilderness area may be modified without prior notice or public hearing to exclude the portion affected by the roads."

2. Paragraphs (b) and (c) of § 251.20 are amended to read as follows:

(b) Grazing of domestic livestock, development of water storage projects which do not involve road construction, and improvements necessary for the protection of the forest may be permitted subject to such restrictions as the Chief deems desirable. Within such designated wildernesses when the use is for other than administrative needs and emergencies the landing of airplanes and the use of motorboats are prohibited on national forest land or water unless such use by airplanes or motorboats has already become well established and the use of motor vehicles is prohibited unless the use is in accordance with a statutory right of ingress and egress.

(c) Wilderness areas will not be modified or eliminated except by order of the Secretary. Except as provided in paragraph (a) of this section notice of every proposed establishment, modification, or elimination will be published or publicly posted by the Forest Service for a period of at least 90 days prior to the approval of the contemplated order and if there is any demand for a public hearing, the regional forester shall hold such hearing and make full report thereon to the Chief of the Forest Service, who will submit it with his recommendations to the Secretary.

(Sec. 1, 30 Stat. 35, as amended, 16 U. S. C. 251. Interprets or applies Sec. 1, 33 Stat. 628, 16 U. S. C. 472)

In testimony whereof, I have hereunto set my hand and caused the official seal of the Department of Agriculture to be affixed, in the city of Washington, D. C., this 4th day of November 1955.

[SEAL] E. L. PETERSON,
Assistant Secretary of Agriculture.

[F. R. Doc. 55-9065; Filed, Nov. 9, 1955; 8:47 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

EFFECTIVE DATE OF CHANGE OR DISCONTINUANCE OF EDUCATION OR TRAINING ALLOWANCE

In § 21.2056, paragraph (a) (6) is amended to read as follows:

§ 21.2056 *Effective date of change or discontinuance of education or training allowance.* (a) * * *

(6) In the event veteran applies for an additional education or training allowance because of a dependent or dependents after original entrance into training under the law, such additional allowance will be authorized as of the date of change or the date of entrance into training, whichever is later, if application therefor is received in the Veterans Administration within 60 days from that date and satisfactory evidence of such dependent or dependents is received in the Veterans Administration within 1 year of the date of request therefor. Where the change occurred during a period of interruption of training, such additional allowance will be authorized from the date of reentrance if application therefor is received in the Veterans Administration within 60 days from the date of reentrance and satisfactory evidence of dependency is received within the 1-year time limitation. In any case where such application is received after the 60-day time limitation provided in this subparagraph, additional education and training allowance will be authorized from date of receipt of application, provided satisfactory evidence of the dependent or dependents is received within the 1-year time limitation.

* * * * *

(Sec. 2, 46 Stat. 1016, sec. 7, 48 Stat. 9, sec. 2, 57 Stat. 43, as amended, sec. 400, 58 Stat. 287, as amended; 38 U. S. C. 11a, 701, 707, ch. 12A. Interprets or applies secs. 3, 4, 57 Stat. 43, as amended, secs. 300, 1500–1504, 1506, 1507, 58 Stat. 286, 300, as amended, sec. 261, 66 Stat. 663; 38 U. S. C. 693g, 697–697d, 697f, g, 971, ch. 12A)

This regulation is effective November 10, 1955.

[SEAL] J. C. PALMER,
Assistant Deputy Administrator.

[F. R. Doc. 55-9128; Filed Nov. 9, 1955; 8:58 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1245]

[Anchorage 024227]

[Misc. 1796532]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 8344 OF FEBRUARY 10, 1940 AND NO. 8789 OF JUNE 14, 1941; WITHDRAWING PORTIONS OF RELEASED LANDS FOR USE OF UNITED STATES COAST GUARD AS A LORAN STATION

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8344 of February 10, 1940, temporarily withdrawing certain lands in Alaska for classification and in aid of legislation, is hereby revoked so far as it affects the following-described area:

KODIAK ISLAND

U. S. Survey No. 3233.

The area described contains 23.53 acres.

2. Executive Order No. 8789 of June 14, 1941, reserving certain lands for use of the War Department for military purposes, is hereby revoked so far as it affects the following-described lands:

MILLER POINT, SPRUCE CAPE AREA

KODIAK ISLAND, ALASKA

Beginning at a point on line of mean high tide on the east side of Kodiak Island, 57°48'30" N., latitude, 152°20'48" W., longitude, as shown on United States Coast and Geodetic Survey Chart No. 8570, March 1910.

Thence from said initial point, N. 45° W., 1.8 miles, to line of mean high tide on east shore of Sycamore Bay;

Thence northeasterly and southeasterly around Miller Point and Spruce Cape with meanders of Sycamore Bay, Popof Bay, and Chiniak Bay to the point of beginning.

The area described, including both public and non-public lands, aggregates 780 acres.

3. Subject to valid existing rights, the following-described lands, which are a portion of the lands described in paragraph 2 of this order, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and the mineral-leasing laws, and reserved for use of the United States Coast Guard as a loran station:

Beginning at corner No. 5, U. S. Survey No. 3101, on line 1–5, U. S. S. 1682, thence S. 89°49' E., 863.28 feet along line 5–6 U. S. S. 3101 to corner 6 MC thereof;

Northeasterly, northerly and southwesterly along line of mean high tide around Spruce Cape to corner 1 MC, U. S. S. 1682;

South, 2,377.42 feet along east boundary U. S. S. 1682 to point of beginning.

The tract described contains approximately 180 acres.

4. The status of the lands described in this order, except those withdrawn by paragraph 3, shall not change so far as applications, locations, settlement, entry or other forms of appropriation are concerned until further order of an authorized officer of the Bureau of Land Management.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

NOVEMBER 3, 1955.

[F. R. Doc. 55-9053; Filed, Nov. 9, 1955; 8:45 a. m.]

[Public Land Order 1246]

[Misc. 189250]

SOUTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 1432 OF NOVEMBER 13, 1911, WHICH RESERVED PUBLIC LANDS FOR USE OF DEPARTMENT OF AGRICULTURE AS VALLEY ADMINISTRATIVE SITE

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1432 of November 13, 1911, reserving the following-described lands in South Dakota for use of the Forest Service, Department of Agriculture, as the Valley Administrative Site, is hereby revoked:

BLACK HILLS MERIDIAN

T. 17 N., R. 2 E.,
Sec. 25, SW¼NE¼, S½NW¼.

The areas described aggregate 120 acres.

The land is grazing land located ½ mile north of Harding, South Dakota, and can be reached over a county gravel road. The topography is rolling to rough. The soil consists of a shallow layer of sandy loam over a rocky and highly calcareous sandy clay subsoil. Vegetation consists of short to midgrasses. Annual precipitation is approximately 13 inches.

No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any existing rights and the requirements of applicable law, the lands described are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. The lands have been open to application and offers under the mineral-leasing laws. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert-Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on December 9, 1955, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on March 10, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on March 10, 1956. will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on March 10. 1956.

Persons claiming veteran's preference rights under paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries regarding the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

NOVEMBER 3, 1955.

[F. R. Doc. 55-9054; Filed, Nov. 9, 1955; 8:45 a. m.]

[Public Land Order 1247]

[1500537–1506978]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 6276 OF SEPTEMBER 8, 1933 AND NO. 6583 OF FEBRUARY 3, 1934 WHICH WITHDREW LANDS TO AID THE STATE IN MAKING EXCHANGE SELECTIONS

By virtue of the authority vested in the President by the act of June 25, 1910, ch. 421 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 6276 of September 8, 1933 and No. 6583 of February 3, 1934, withdrawing public lands to aid the State of New Mexico in making exchange selections are hereby revoked so far as they affect the following-described lands:

In Executive Order No. 6276:

[1500537]

NEW MEXICO PRINCIPAL MERIDIAN

T. 21 S., R. 6 W.,
Sec. 19, lots 1 and 2, E½NW¼ and SW¼ NE¼;
Sec. 30, NW¼SE¼, E½SW¼;
Sec. 31, W½NE¼, SE¼NE¼, E½NW¼, NE¼SW¼, N½SE¼, SE¼SE¼.
T. 21 S., R. 7 W.,
Sec. 13, lots 9 to 16, inclusive;
Sec. 24, lot 15;
Sec. 25, lots 2, 7, 10, and 15.

In Executive Order No. 6583:

[1506978]

T. 21 S., R. 6 W.,
Sec. 18, lots 3 and 4, E½SW¼;
Sec. 19, lot 3, NW¼NE¼, NW¼SE¼;
Sec. 30, SE¼NE¼, NE¼SE¼;
Sec. 31, NE¼NE¼.
T. 21 S., R. 7 W.,
Sec. 24, lots 1, 2, 7, and 8.

The areas described aggregate 1,728.08 acres for both orders.

The lands are generally grazing lands.

No application for the lands may be allowed under the homestead, small tract, desert-land, or any other nonmineral public-land law unless the land has already been classified as valuable or suitable for such type of application or shall be so classified upon consideration of an application.

Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraph:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on December 10, 1955, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on March 10, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on March 10, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands are now open to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on March 10, 1956.

Persons claiming veterans preference rights under Paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office,